determining the constitutionality of a law, however examines only the substantive question i.e., whether the law is within the powers of the authority concerned or not. It is not expected to go into the question of its reasonableness, suitability or policy implications".[10]

The exercise of wide power of judicial review by the American Supreme Court in the name of 'due process of law' clause has made the critics to describe it as a 'third chamber' of the Legislature, a super-legislature, the arbiter of social policy and so on. This American principle of judicial supremacy is also recognised in our constitutional system, but to a limited extent. Nor do we fully follow the British Principle of parliamentary supremacy. There are many limitations on the sovereignty of Parliament in our country, like the written character of the Constitution, the federalism with division of powers, the Fundamental Rights and the judicial review. In effect, what exists in India is a synthesis of both, that is, the American principle of judicial supremacy and the British principle of parliamentary supremacy.

JUDICIAL REVIEW OF THE NINTH SCHEDULE

Article 31B saves the acts and regulations included in the Ninth Schedule from being challenged and invalidated on the ground of contravention of any of the Fundamental Rights. Article 31B along with the Ninth Schedule was added by the 1st Constitutional Amendment Act of 1951.

Originally (in 1951), the Ninth Schedule contained only 13 acts and regulations but at present their number is 282.[11] Of these, the acts and regulations of the state legislature deal with land reforms and abolition of the zamindari system and that of the Parliament deal with other matters.

However, in the *Kesavananda Bharati* case[12] (1973), the Supreme Court rules that the acts and regulations that are included in the Ninth Schedule are open to challenge
on the grounds of being violative of the basic structure of the constitution. This was later clarified by the court in the *Waman Rao* case[13] (1980) wherein it held that the various acts and regulations included in the Ninth Schedule after 24 April, 1973 (date of judgement in the Kesavananda Bharati case) are valid only if they do not damage the basic structure of the constitution.

Again, in the *I.R. Coelho* case[14] (2007), the Supreme Court reaffirmed the above view. In this case, the court ruled that there could not be any blanket immunity from judicial review of the laws included in the Ninth Schedule. It held that judicial review is a 'basic feature' of the constitution and it could not be taken away putting a law under the Ninth Schedule. It said that the laws placed under the Ninth Schedule after 24 April, 1973, are open to challenge in court if they violated fundamental rights guaranteed under Articles 14, 15, 19 and 21 or the basic structure of the constitution.

While delivering the above judgement, the Supreme Court made the following conclusions:

1. A law that abrogates or abridges rights guaranteed by Part III of the Constitution may violate the basic structure doctrine, or it may not. If former is the consequence of law, whether by an amendment of any Article of Part III or by an insertion in the Ninth Schedule, such law will have to be invalidated in the exercise of judicial review power of the Court. The constitutional validity of the Ninth Schedule laws on the touchstone of basic structure doctrine can be adjudged by applying the direct impact and effect test, i.e., rights test, which means the form of an amendment is not the relevant factor, but the consequence thereof would be the determinative factor.

2. The majority judgement in the *Kesavanand Bharati* Case read with *Indira Gandhi* case[15] requires the validity of each new constitutional Amendment to be judged on its own merits. The actual